

		(<i>Nicoletti v. Kest</i> (2023) 97 Cal.App.5th 140, 146.) Similarly, Defendants only evidence in support of this claim is the photograph attached as Exhibit D which is not admissible. (UMF 13.) Thus, Defendants have failed to submit any admissible evidence to show the condition was open or obvious. Accordingly, Defendants have failed to meet their burden of proof of showing a complete defense to Plaintiff's cause of action and their Motion is denied.
11	23-01302857 <i>Providence Capital Funding, Inc. vs. Team MMJ Trucking LLC</i>	Motion for Summary Judgment and/or Adjudication Plaintiff Providence Capital Funding, Inc.'s Motion for Summary Judgment, or, in the Alternative, Motion for Summary Adjudication is GRANTED. Plaintiff Providence Capital Funding, Inc. ("Plaintiff") moves for summary judgment in its favor against defendants Team MMJ Trucking LLC ("MMJ"), Mike Springer ("M. Springer") and Tonya Springer ("T. Springer") (collectively, "Defendants") on the causes of action against them that are alleged in Plaintiff's complaint. Alternatively, Plaintiff moves for summary adjudication that MMJ has no defense to the first cause of action for breach of contract; Defendants have no defense to the second cause of action for recovery of personal property; defendants M. Springer and T. Springer have no defense to the third cause of action for breach of guaranty; and each of Defendants' 16 affirmative defenses are without merit as a matter of law. The Court declines to consider Defendants' untimely opposition, which was served on 7/6/26 and filed on 7/7/26. Defendants' opposition was due on 6/26/26. (See Code Civ. Proc., § 437c, subd. (b)(2) [20 days before the 7/16/26 hearing date].) Courts have discretion "to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission." (<i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765; <i>Kapitanski v. Von's Grocery Co., Inc.</i> (1983) 146 Cal.App.3d 29, 32-33 [court can summarily reject late-filed papers under local rules, but if it considers them at all, it must apply Code Civ. Proc., § 473 standards, and it is an abuse of discretion to refuse relief if "excusable neglect" shown]; CRC, rule 3.1300(d).) Defendants have not established that their untimely service and filing of their opposition was due to excusable neglect. The Court declines to rule on Plaintiff's objections (ROA 182, 183) as immaterial to the Court's ruling but the objections are preserved for purposes of appeal. (See <i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512, 526 ["the trial court's failure to rule expressly on any of Google's evidentiary objections did not waive them on appeal"]; see Code Civ. Proc., § 437c, subd. (q).) Legal Standard

“A party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Where a plaintiff seeks summary judgment or summary adjudication, the plaintiff meets its initial burden by “prov[ing] each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(1).) Plaintiff’s initial burden “[does] not include disproving any affirmative defenses asserted by defendants.” (*Oldcastle Precast, Inc. v. Lumbermens Mut. Cas. Co.* (2009) 170 Cal.App.4th 554, 564; *Montrose Chemical Corporation v. Superior Court* (1993) 6 Cal.4th 287, 301, fn 4.)

If plaintiff meets this initial burden, “the burden then shifts to the defendant . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(1).) The defendant may not rely on allegations or denials of its own pleadings. (*Ibid.*) “An issue of fact can only be created by a conflict of evidence. It is not created by speculation, conjecture, imagination or guess work.” (*Yuzon v. Collins* (2004) 116 Cal.App.4th 149, 166 [cleaned up].)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843.)

First and Third Causes of Action - Breach of Contract and Breach of Guaranty

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff’s performance of the contract or excuse for nonperformance (3) the defendant’s breach, and (4) the resulting damage to the plaintiff.” (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

“A lender is entitled to judgment on a breach of guaranty claim based upon undisputed evidence that (1) there is a valid guaranty, (2) the borrower has defaulted, and (3) the guarantor failed to perform under the guaranty.” (*Grayl CPB, LLC v. Kolokotronis* (2011) 202 Cal.App.4th 480, 486.)

Here, the undisputed material facts establish each element of each cause of action.

The existence of a valid contract and valid guaranty: On or about 8/7/20, Plaintiff, as lessor, and MMJ, as lessee, entered into written Lease Agreement No. 20200731/904730 (“Lease”) whereby MMJ agreed to lease from Providence a 2013 Cascadia Freightliner tractor (“Vehicle”) for an initial term of 24 months (“Initial Term”). (UMF 1, 3-5.) At least 120 days before the end of the Initial Term, MMJ could elect to purchase the Vehicle or return it by providing Plaintiff with written

notice of its election. Otherwise, the Lease would automatically renew for another 12 months, and thereafter for successive 6 month terms until MMJ returned the Vehicle to Plaintiff. (UMF 6-7.)

Concurrently with MMJ's execution of the Lease, M. Springer and T. Springer executed written guaranty agreements ("Guaranties") whereby they unconditionally guaranteed all obligations owed by MMJ under the Lease. (UMF 8.) In reliance on the Guaranties, Plaintiff extended credit to Defendants. (UMF 9.)

Subsequent to the funding of the Lease, Plaintiff assigned 22 of the Initial Term payments under the Lease to Financial Pacific Leasing ("FPL"), retaining the rights to the first and last payments. (UMF 10.) MMJ made all payments due during the Initial Term of the Lease, including the 22 payments assigned to FPL. (UMF 12-14.) Following payment of the Initial Term payments assigned to FPL, all right, title and interest to the Lease and the Vehicle was reassigned back to Plaintiff. (UMF 14.) Following the reassignment, Plaintiff has held all right, title and interest in the Lease and the Vehicle. (UMF 14.)

Plaintiff's performance: Plaintiff and FPL performed as required under the Lease by paying the vendor and by allowing MMJ to have possession and use of the Vehicle. (UMF 2, 12,14.)

Defendants' breach: At the end of the Initial Term, MMJ did not return the Vehicle to Plaintiff and never provided notice of its election to return or repurchase the Vehicle. Thus, the Lease automatically renewed for an additional 12 month term, and thereafter for successive 6 month terms. (UMF 15.) Beginning November 2022, MMJ stopped making the monthly payments owed to Plaintiff under the Lease. (UMF 16-17.) MMJ continues to possess the Vehicle. (UMF 18.) On or about 1/12/23, Plaintiff made demand upon Defendants for payment of the past due amount and return of the Vehicle. (UMF 19.) However, they failed and refused to do so. (UMF 20.)

Plaintiff's resulting damages: As of 3/15/26, Plaintiff is owed \$67,914.61 from MMJ under the Lease and from M. Springer and T. Springer under the Guaranties. (UMF 20.)

Accordingly, Plaintiff has met its initial burden.

Defendants have failed to timely oppose the motion and, therefore, have failed to establish triable issues of material fact.

Second Cause of Action - Recovery of Personal Property

To establish claim for recovery of personal property, the plaintiff must prove the right to immediate and exclusive possession of the property at the time of the commencement of the action and the defendant has unlawfully refused to return the property to the plaintiff. (*Fredericks v. Tracy* (1893) 98 Cal. 658, 660; *Normart v. Safer* (1924) 67 Cal.App. 507, 519.)

		Here, the undisputed facts establish each of these elements. The Lease provides that Plaintiff is the owner of and has title to the Vehicle, and if MMJ failed to make any payment when due, Plaintiff could take possession of the Vehicle. (UMF 3-4.) Plaintiff assigned 22 of the Initial Term payments FPL. (UMF 10.) Following MMJ's payment of the Initial Term payments, FPL reassigned all right, title and interest to the Lease and the Vehicle back to Plaintiff. (UMF 12- 14.) Beginning November 2022, MMJ defaulted on the Lease when it stopped making the monthly payments. (UMF 16-17.) On or about 1/12/23, Plaintiff made demand upon Defendants for payment of the past due amounts and return of the Vehicle; however, they failed and refused to do so. (UMF 19-20.) Plaintiff commenced this action on 1/18/23. These facts establish Plaintiff had the right to immediate and exclusive possession to the Vehicle at the time it commenced this action and Defendants refused Plaintiff's pre-litigation demand to return the Vehicle. Accordingly, Plaintiff has met its initial burden. Defendants have failed to timely oppose the motion and, therefore, have failed to establish triable issues of material fact. Plaintiff's motion for summary judgment is granted.
13	25-01480023 <i>Rodriguez vs. Richardson</i>	Motion to Appear Pro Hac Vice The Application of Matthew Kleifield to Appear Pro Hac Vice for defendants Jamee Paige Richardson and Benjamin Richardson is GRANTED. Moving attorney has satisfied all the requirements of California Rules of Court, Rule 9.40. Moving attorney to give notice.